

6 Exports by Sea

6.1 General

Legislation provides that all ships, whether laden or in ballast, i.e., without cargo, must be cleared outwards by customs before departing from a port in Ireland to a place abroad. Clearance outwards is the customs authority for the departure of the ship. There are exceptions to this rule in the cases of vessels of Authorised Regular Shipping Services, fishing boats and calling ships and these are described below. A manifest to show what goods the vessel is carrying must also be lodged. This enables Revenue to ascertain that all the goods on the vessel have been properly declared.

6.2 Clearance of ships outwards

Directive 2010/65/EU facilitates maritime transport by providing for standardisation of reporting formalities. It has been implemented nationally by the European Union (Reporting Formalities for Ships) Regulations 2012 ([S.I. No. 166 of 2012](#)).

Sections 8 and 9 of the Customs Act, 2015, the Customs (Reports Inwards and Outwards by Vessels) Regulations 2016 ([S.I. No. 612 of 2016](#)), the Customs (Electronic Filing of Returns) Order 2016 ([S.I. No. 613 of 2016](#)) and the Customs (Mandatory Electronic Filing) (Specified Persons) Regulations 2016 ([S.I. No. 614 of 2016](#)) make provision for the reporting requirements for vessels.

6.3 Outward clearance not required

6.3.1 Vessels of an Authorised Regular Shipping Service

Formal clearance outwards are not required for vessels of an Authorised Regular Shipping Service (See paragraph 6.9). In such cases Mercantile Marine or Light Dues certificates are lodged by the Agent / Master at the local Revenue office on arrival of the vessel. Failure to produce such certificates, or production of certificates which require corrective action, should be immediately reported to the relevant Department on whose behalf the agency work is being carried out.

Where such certificates are not in order and where outward clearance is not required, vessels are not to be stopped from sailing, but the Master is to be informed that the vessel is going to sail without having fulfilled its legal obligations. In such cases the Department of Transport and/or Commissioners of Irish Lights, as appropriate, should be notified and the Master made aware of such notification. A record of such notifications should be kept in a suitably adapted register. The matter is to be reported immediately to local management.

6.3.2 Fishing boats

Fishing boats leaving for foreign fishing grounds are not required to clear outward unless they have cargo on board or have taken on board bonded stores. If they have bonded stores on board, the outward clearance declaration must specify the exact fishing grounds to which the vessel is proceeding and the duration of the voyage. Details of the Voisinage Arrangement with Northern Ireland can be found on the [Revenue website](#).